the same adversary approach prevails. The need was, therefore, felt, in the public interest, to establish Family Courts for speedy settlement of family disputes.

Therefore, the main objectives and reasons for setting up of Family Courts are:[5]

1. To create a Specialized Court which will exclusively deal with family matters so that such a court may have the necessary expertise to deal with these cases expeditiously. Thus expertise and expeditious disposal are two main factors for establishing such a court;

2. To institute a mechanism for conciliation of the disputes relating to family;

3. To provide an inexpensive remedy; and

4. To have f lexibility and an informal atmosphere in the conduct of proceedings.

 **Features**

The salient features of the Family Courts Act, 1984 are as follows:

1. It provides for the establishment of Family Courts by the State Governments in consultation with the High Courts.

2. It makes it obligatory on the State Governments to set up a Family Court in every city or town with a population exceeding one million.

3. It enables the State Governments to set up Family Courts in other areas also, if they deem it necessary.

4. It exclusively provides within the jurisdiction of the Family Courts the matters relating to:

    1. matrimonial relief, including nullity of marriage, judicial separation, divorce, restitution of conjugal rights, or declaration as to the validity of marriage or as to the matrimonial status of any person;

    2. the property of the spouses or of either of them;

    3. declaration as to the legitimacy of any person;

    4. guardianship of a person or the custody of any minor; and

    5. maintenance of wife, children and parents.

5. It makes it obligatory on the part of the Family Court to endeavour, in the first instance to effect a reconciliation or a settlement between the parties to a family dispute. During this stage, the proceedings will be informal and rigid rules of procedure shall not apply.

6. It provides for the association of social welfare agencies, counsellors, etc., during conciliation stage and also to secure the service of medical and welfare experts.